

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 346

 By: Bergstrom, Mann, Hamilton,
 and Sacchieri of the Senate

6 and

7 Hays of the House

8
9
10 An Act relating to school personnel; amending 70 O.S.
11 2021, Section 3-104, as last amended by Section 1,
12 Chapter 445, O.S.L. 2025 (70 O.S. Supp. 2025, Section
13 3-104), which relates to the powers and duties of the
14 State Board of Education; allowing the Board to
15 suspend or revoke certain license or certificate for
16 conviction of certain misdemeanor; amending 70 O.S.
17 2021, Section 5-142, as amended by Section 3, Chapter
18 101, O.S.L. 2025 (70 O.S. Supp. 2025, Section 5-142),
19 which relates to criminal history record checks for
20 school employees; requiring certain affidavit to
21 include certain attestation; requiring affidavit to
22 include certain information; requiring certain
23 prospective employer to contact certain prior
24 employer to determine the validity of certain
 affidavit; creating misdemeanor offense; providing
 penalties; prohibiting a board of education from
 hiring certain teacher who fails to provide certain
 affidavit; updating statutory language; updating
 statutory references; providing an effective date;
 and declaring an emergency.

23 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 3-104, as last amended by Section 1, Chapter 445, O.S.L. 2025 (70 O.S. Supp. 2025, Section 3-104), is amended to read as follows:

Section 3-104. A. The supervision of the public school system of Oklahoma shall be vested in the State Board of Education and, subject to limitations otherwise provided by law, the State Board of Education shall:

1. Adopt policies and make rules for the operation of the public school system of the state;

2. Appoint, prescribe the duties, and fix the compensation of a secretary, an attorney, and all other personnel necessary for the proper performance of the functions of the State Board of Education. The secretary shall not be a member of the Board;

3. Submit to the Governor a departmental budget based upon major functions of the State Department of Education as prepared by the Superintendent of Public Instruction and supported by detailed data on needs and proposed operations as partially determined by the budgetary needs of local school districts filed with the State Board of Education for the ensuing fiscal year. Appropriations therefor shall be made in lump-sum form for each major item in the budget as follows:

a. State Aid to schools,

b. the supervision of all other functions of general and special education including general control, free

1 textbooks, school lunch, Indian education, and all
2 other functions of the Board and an amount sufficient
3 to adequately staff and administer these services, and
4 c. the Board shall determine the details by which the
5 budget and the appropriations are administered.
6 Annually, the Board shall make preparations to
7 consolidate all of the functions of the Department in
8 such a way that the budget can be based on two items,
9 administration and aid to schools. A maximum amount
10 for administration shall be designated as a part of
11 the total appropriation;

12 4. On the first day of December preceding each regular session
13 of the Legislature, prepare and deliver electronically to the
14 Governor and the Legislature a report for the year ending June 30
15 immediately preceding the regular session of the Legislature. The
16 report shall contain:

17 a. detailed statistics and other information concerning
18 enrollment, attendance, expenditures including State
19 Aid, and other pertinent data for all public schools
20 in this state,

21 b. reports from each and every division within the State
22 Department of Education as submitted by the
23 Superintendent of Public Instruction and any other
24

1 division, department, institution, or other agency
2 under the supervision of the Board,

3 c. recommendations for the improvement of the public
4 school system of the state,

5 d. a statement of the receipts and expenditures of the
6 State Board of Education for the past year, and

7 e. a statement of plans and recommendations for the
8 management and improvement of public schools and such
9 other information relating to the educational
10 interests of the state as may be deemed necessary and
11 desirable;

12 5. Provide for the formulation and adoption of curricula,
13 courses of study, and other instructional aids necessary for the
14 adequate instruction of pupils in the public schools;

15 6. Have authority in matters pertaining to the licensure and
16 certification of persons for instructional, supervisory, and
17 administrative positions and services in the public schools of the
18 state subject to the provisions of Section 6-184 of this title, and
19 shall ~~formulate~~ promulgate rules governing the issuance and
20 revocation of certificates for superintendents of schools,
21 principals, supervisors, librarians, clerical employees, school
22 nurses, school bus drivers, visiting teachers, classroom teachers,
23 and for other personnel performing instructional, administrative,
24 and supervisory services, but not including members of boards of

1 education and other employees who do not work directly with pupils,
2 and may charge and collect reasonable fees for the issuance of such
3 certificates:

4 a. the State Department of Education shall not issue a
5 certificate to and shall revoke the certificate of any
6 person who has been convicted, whether upon a verdict
7 or plea of guilty or upon a plea of nolo contendere,
8 or received a suspended sentence or any probationary
9 term for a crime or an attempt to commit a crime
10 provided for in Section 843.5 of Title 21 of the
11 Oklahoma Statutes if the offense involved sexual abuse
12 or sexual exploitation as those terms are defined in
13 Section 1-1-105 of Title 10A of the Oklahoma Statutes,
14 Section 741, 843.1, if the offense included sexual
15 abuse or sexual exploitation, 865 et seq., 885, 888,
16 891, 1021, 1021.2, 1021.3, 1040.13a, 1087, 1088,
17 1111.1, 1114, or 1123 of Title 21 of the Oklahoma
18 Statutes or who enters this state and who has been
19 convicted, received a suspended sentence, or received
20 a deferred judgment for a crime or attempted crime
21 which, if committed or attempted in this state, would
22 be a crime or an attempt to commit a crime provided
23 for in any of the laws,

1 b. except as provided for in subparagraph a of this
2 paragraph, the State Board of Education shall have the
3 authority to revoke or suspend a license or
4 certificate only for the following reasons:

5 (1) a willful violation of any federal or state law,

6 (2) the abuse or neglect of a child,

7 (3) moral turpitude, ~~or~~

8 (4) a conviction for any of the offenses or basis for
9 revocation set forth in this section and Section
10 3-104.1 of this title, or

11 (5) a conviction, whether upon a verdict or plea of
12 guilty or upon a plea of nolo contendere, for
13 willfully making a false statement in an
14 affidavit required by Section 5-142 of this
15 title,

16 c. the State Board of Education shall not have the
17 authority to summarily revoke or suspend a license or
18 certificate pending an individual proceeding for
19 revocation or other action unless for a valid
20 emergency as defined in the Administrative Procedures
21 Act. Upon initiating a formal investigation, the
22 State Department of Education shall notify via
23 certified mail and electronic mail the superintendent
24 of the school district where the license or

1 certificate holder is employed. In no event shall the
2 State Board of Education move to revoke or suspend a
3 license or certificate, for an emergency or otherwise,
4 unless the license or certificate holder and any
5 employing school district received notice via
6 certified mail and electronic mail within three (3)
7 days of the date the application was filed with the
8 State Board of Education, and

- 9 d. all funds collected by the State Department of
10 Education for the issuance of certificates to
11 instructional, supervisory, and administrative
12 personnel in the public schools of the state shall be
13 deposited in the "Teachers' Certification Fund" in the
14 State Treasury and may be expended by the State Board
15 of Education to finance the activities of the State
16 Department of Education necessary to administer the
17 program, for consultative services, publication costs,
18 actual and necessary travel expenses as provided in
19 the State Travel Reimbursement Act incurred by persons
20 performing research work, and other expenses found
21 necessary by the State Board of Education for the
22 improvement of the preparation and certification of
23 teachers in this state. Provided, any unobligated
24 balance in the Teachers' Certification Fund in excess

1 of Ten Thousand Dollars (\$10,000.00) on June 30 of any
2 fiscal year shall be transferred to the General
3 Revenue Fund of this state. Until July 1, 1997, the
4 State Board of Education shall have authority for
5 approval of teacher education programs. The State
6 Board of Education shall also have authority for the
7 administration of teacher residency and professional
8 development, subject to the provisions of the Oklahoma
9 Teacher Preparation Act;

10 7. Promulgate rules governing the classification, inspection,
11 supervision, and accrediting of all public nursery, kindergarten,
12 elementary and secondary schools, and on-site educational services
13 provided by public school districts or state-accredited private
14 schools in partial hospitalization programs, day treatment programs,
15 and day hospital programs as defined in Section 3-104.7 of this
16 title and Section 175.20 of Title 10 of the Oklahoma Statutes for
17 persons between the ages of three (3) and twenty-one (21) years of
18 age in the state. However, no school shall be denied accreditation
19 solely on the basis of average daily attendance.

20 Any school district which maintains an elementary school and
21 faces the necessity of relocating its school facilities because of
22 construction of a lake, either by state or federal authority, which
23 will inundate the school facilities, shall be entitled to receive
24 probationary accreditation from the State Board of Education for a

1 period of five (5) years after June 12, 1975, and any school
2 district, otherwise qualified, shall be entitled to receive
3 probationary accreditation from the State Board of Education for a
4 period of two (2) consecutive years to attain the minimum average
5 daily attendance. The Head Start and public nurseries or
6 kindergartens operated from community action agency funds shall not
7 be subjected to the accrediting rules of the State Board of
8 Education. Neither will the State Board of Education make rules
9 affecting the operation of the public nurseries and kindergartens
10 operated from federal funds secured through community action
11 agencies even though they may be operating in the public schools of
12 the state. However, any of the Head Start or public nurseries or
13 kindergartens operated under federal regulations may make
14 application for accrediting from the State Board of Education but
15 will be accredited only if application for the approval of the
16 programs is made. The status of no school district shall be changed
17 which will reduce it to a lower classification until due notice has
18 been given to the proper authorities thereof and an opportunity
19 given to correct the conditions which otherwise would be the cause
20 of such reduction.

21 Private and parochial schools may be accredited and classified
22 in like manner as public schools or, if an accrediting association
23 is approved by the State Board of Education, by procedures
24 established by the State Board of Education to accept accreditation

1 by such accrediting association, if application is made to the State
2 Board of Education for such accrediting;

3 8. Be the legal agent of this state to accept, in its
4 discretion, the provisions of any Act of Congress appropriating or
5 apportioning funds which are now, or may hereafter be, provided for
6 use in connection with any phase of the system of public education
7 in Oklahoma. It shall prescribe such rules as it finds necessary to
8 provide for the proper distribution of such funds in accordance with
9 the state and federal laws;

10 9. Be and is specifically hereby designated as the agency of
11 this state to cooperate and deal with any officer, board, or
12 authority of the United States ~~Government~~ government under any law
13 of the United States which may require or recommend cooperation with
14 any state board having charge of the administration of public
15 schools unless otherwise provided by law;

16 10. Be and is hereby designated as the state educational agency
17 referred to in Public Law 396 of the 79th Congress of the United
18 States, as amended, which may be known as the Richard B. Russell
19 National School Lunch Act, and the State Board of Education is
20 hereby authorized and directed to accept the terms and provisions of
21 the act and to enter into such agreements, not in conflict with the
22 Oklahoma Constitution ~~of Oklahoma~~ or the United States Constitution
23 and Statutes ~~of the United States~~, as may be necessary or
24

1 appropriate to secure for this state the benefits of the school
2 lunch program established and referred to in the act;

3 11. Have authority to secure and administer the benefits of the
4 Richard B. Russell National School Lunch Act, Public Law 396 of the
5 79th Congress of the United States, as amended, in this state and is
6 hereby authorized to employ or appoint and fix the compensation of
7 such additional officers or employees and to incur such expenses as
8 may be necessary for the accomplishment of the above purpose, and
9 administer the distribution of any state funds appropriated by the
10 Legislature required as federal matching to reimburse on children's
11 meals;

12 12. Accept and provide for the administration of any land,
13 money, buildings, gifts, donations, or other things of value which
14 may be offered or bequeathed to the schools under the supervision or
15 control of the Board;

16 13. Have authority to require persons having administrative
17 control of all school districts in Oklahoma to make such regular and
18 special reports regarding the activities of the schools in the
19 districts as the Board may deem needful for the proper exercise of
20 its duties and functions. Such authority shall include the right of
21 the State Board of Education to withhold all state funds under its
22 control, to withhold official recognition including accrediting,
23 until such required reports have been filed and accepted in the
24

1 office of the Board and to revoke the certificates of persons
2 failing or refusing to make such reports;

3 14. Have general supervision of the school lunch program. The
4 State Board of Education may sponsor workshops for personnel and
5 participants in the school lunch program and may develop, print, and
6 distribute free of charge or sell any materials, books, and
7 bulletins to be used in the school lunch programs. There is hereby
8 created in the State Treasury a revolving fund for the Board, to be
9 designated the "School Lunch Workshop Revolving Fund". The fund
10 shall consist of all fees derived from or on behalf of any
11 participant in any such workshop sponsored by the State Board of
12 Education, or from the sale of any materials, books, and bulletins,
13 and funds shall be disbursed for expenses of such workshops and for
14 developing, printing, and distributing of the materials, books, and
15 bulletins relating to the school lunch program. The fund shall be
16 administered in accordance with Section 155 of Title 62 of the
17 Oklahoma Statutes;

18 15. Prescribe all forms for school district and county officers
19 to report to the State Board of Education where required. The State
20 Board of Education shall also prescribe a list of appropriation
21 accounts by which the funds of school districts shall be budgeted,
22 accounted for, and expended; and it shall be the duty of the State
23 Auditor and Inspector in prescribing all budgeting, accounting, and
24 reporting forms for school funds to conform to such lists;

1 16. Provide for the establishment of a uniform system of pupil
2 and personnel accounting, records, and reports;

3 17. Have authority to provide for the health and safety of
4 school children and school personnel while under the jurisdiction of
5 school authorities;

6 18. Provide for the supervision of the transportation of
7 pupils;

8 19. Have authority, upon request of the local school board, to
9 act in behalf of the public schools of the state in the purchase of
10 transportation equipment;

11 20. Have authority and is hereby required to perform all duties
12 necessary to the administration of the public school system in
13 Oklahoma as specified in the Oklahoma School Code; and, in addition
14 thereto, those duties not specifically mentioned herein if not
15 delegated by law to any other agency or official;

16 21. Administer the State Public Common School Building
17 Equalization Fund established by Section 32 of Article X of the
18 Oklahoma Constitution. Any monies as may be appropriated or
19 designated by the Legislature, other than ad valorem taxes, any
20 other funds identified by the State Department of Education, which
21 may include, but not be limited to, grants-in-aid from the federal
22 government for building purposes, the proceeds of all property that
23 shall fall to the state by escheat, penalties for unlawful holding
24 of real estate by corporations, and capital gains on assets of the

1 permanent school funds, shall be deposited in the State Public
2 Common School Building Equalization Fund. The fund shall be used to
3 aid school districts and charter schools in acquiring buildings,
4 subject to the limitations fixed by Section 32 of Article X of the
5 Oklahoma Constitution. It is hereby declared that redbud school
6 grants disbursed from the State Public Common School Building
7 Equalization Fund shall be used for the same purposes as a building
8 fund, as provided for in Section 1-118 of this title. It is hereby
9 declared that the term "school districts" as used in Section 32 of
10 Article X of the Oklahoma Constitution shall mean school districts
11 and eligible charter schools as defined in subsection B of this
12 section. The State Board of Education shall disburse redbud school
13 grants annually from the State Public Common School Building
14 Equalization Fund to public schools and eligible charter schools
15 pursuant to subsection B of this section. The Board shall
16 promulgate rules for the implementation of disbursing redbud school
17 grants pursuant to this section. The State Board of Education shall
18 prescribe rules for making grants of aid from, and for otherwise
19 administering, the fund pursuant to the provisions of this
20 paragraph, and may employ and fix the duties and compensation of
21 technicians, aides, clerks, stenographers, attorneys, and other
22 personnel deemed necessary to carry out the provisions of this
23 paragraph. The cost of administering the fund shall be paid from
24 monies appropriated to the State Board of Education for the

1 operation of the State Department of Education. From monies
2 apportioned to the fund, the State Department of Education may
3 reserve not more than one-half of one percent (1/2 of 1%) for
4 purposes of administering the fund;

5 22. Recognize that the Director of the Department of
6 Corrections shall be the administrative authority for the schools
7 which are maintained in the state reformatories and shall appoint
8 the principals and teachers in such schools. Provided, that rules
9 of the State Board of Education for the classification, inspection,
10 and accreditation of public schools shall be applicable to such
11 schools; and such schools shall comply with standards set by the
12 State Board of Education; and

13 23. Have authority to administer a revolving fund which is
14 hereby created in the State Treasury, to be designated the
15 "Statistical Services Revolving Fund". The fund shall consist of
16 all monies received from the various school districts of the state,
17 the United States ~~Government~~ government, and other sources for the
18 purpose of furnishing or financing statistical services and for any
19 other purpose as designated by the Legislature. The State Board of
20 Education is hereby authorized to enter into agreements with school
21 districts, municipalities, the United States ~~Government~~ government,
22 foundations, and other agencies or individuals for services,
23 programs, or research projects. The Statistical Services Revolving
24

1 Fund shall be administered in accordance with Section 155 of Title
2 62 of the Oklahoma Statutes.

3 B. 1. The redbud school grants shall be determined by the
4 State Department of Education as follows:

5 a. divide the county four-mill levy revenue by four to
6 determine the nonchargeable county four-mill revenue
7 for each school district,

8 b. determine the amount of new revenue generated by the
9 five-mill building fund levy as authorized by Section
10 10 of Article X of the Oklahoma Constitution for each
11 school district as reported in the Oklahoma Cost
12 Accounting System for the preceding fiscal year,

13 c. add the amounts calculated in subparagraphs a and b of
14 this paragraph to determine the nonchargeable millage
15 for each school district,

16 d. add the nonchargeable millage in each district
17 statewide as calculated in subparagraph c of this
18 paragraph and divide the total by the average daily
19 membership in public schools statewide based on the
20 preceding school year's average daily membership,
21 according to the provisions of Section 18-107 of this
22 title. This amount is the statewide nonchargeable
23 millage per student, known as the baseline local
24 funding per student,

- 1 e. all eligible charter schools shall be included in
2 these calculations as unique school districts,
3 separate from the school district that may sponsor the
4 eligible charter school, and the total number of
5 districts shall be used to determine the statewide
6 average baseline local funding per student,
- 7 f. for each school district or eligible charter school
8 which is below the baseline local funding per student,
9 the Department shall subtract the baseline local
10 funding per student from the average nonchargeable
11 millage per student of the school district or eligible
12 charter school to determine the nonchargeable millage
13 per student shortfall for each district, and
- 14 g. the nonchargeable millage per student shortfall for a
15 school district or eligible charter school shall be
16 multiplied by the average daily membership of the
17 preceding school year of the eligible school district
18 or eligible charter school. This amount shall be the
19 redbud school grant amount for the school district or
20 eligible charter school.

21 2. For fiscal year 2022, monies for the redbud school grants
22 shall be expended from the funds apportioned pursuant to Section 426
23 of Title 63 of the Oklahoma Statutes. For fiscal year 2023 and each
24 subsequent fiscal year, monies for the redbud school grants shall be

1 appropriated pursuant to Section 426 of Title 63 of the Oklahoma
2 Statutes, not to exceed three-fourths (3/4) of the tax collected in
3 the preceding fiscal year pursuant to Section 426 of Title 63 of the
4 Oklahoma Statutes as determined by the Oklahoma Tax Commission. For
5 fiscal year 2023 and each subsequent fiscal year, if such
6 appropriated funds are insufficient to fund the redbud school
7 grants, then an additional apportionment of funds shall be made from
8 sales tax collections as provided by subsection D of Section 1353 of
9 Title 68 of the Oklahoma Statutes. If both funds are insufficient,
10 the Department shall promulgate rules to permit a decrease to the
11 baseline local funding per student to the highest amount allowed
12 with the funding available.

13 3. As used in this section, "eligible charter school" shall
14 mean a charter school which is sponsored pursuant to the provisions
15 of the Oklahoma Charter Schools Act. Provided, however, eligible
16 charter school shall not include a statewide virtual charter school
17 sponsored by the Statewide Charter School Board but shall only
18 include those which provide in-person or blended instruction, as
19 provided by Section 1-111 of this title, to not less than two-thirds
20 (2/3) of students as the primary means of instructional service
21 delivery.

22 4. The Department shall develop a program to acknowledge the
23 redbud school grant recipients and shall include elected members of
24

1 the House of Representatives and Senate who represent the school
2 districts and eligible charter schools.

3 5. The Department shall create a dedicated page on its website
4 listing annual redbud school grant recipients, amount awarded to
5 each recipient, and other pertinent information about the Redbud
6 School Funding Act.

7 6. The Department shall provide the ~~chair~~ Chair of the House
8 Appropriations and Budget Committee and the ~~chair~~ Chair of the
9 Senate Appropriations Committee no later than February 1 of each
10 year with an estimate of the upcoming year's redbud school grant
11 allocation as prescribed by this section.

12 SECTION 2. AMENDATORY 70 O.S. 2021, Section 5-142, as
13 amended by Section 3, Chapter 101, O.S.L. 2025 (70 O.S. Supp. 2025,
14 Section 5-142), is amended to read as follows:

15 Section 5-142. A. Except as otherwise provided for in
16 subsection F of this section, for purposes of employment, a board of
17 education may request in writing to the State Board of Education
18 that a national criminal history record check be conducted of any
19 employee of the school and shall request such information for any
20 person seeking employment with the school; provided, that a board of
21 education shall not be required to obtain a new criminal history
22 record check for an individual who has obtained certification from
23 the State Department of Education within the previous twelve (12)
24 months. The Oklahoma State Bureau of Investigation (OSBI) shall

1 obtain fingerprints of the employee or prospective employee and
2 require that the person pay a search fee not to exceed Fifty Dollars
3 (\$50.00) or the cost of the search, whichever is the lesser amount.
4 The fee shall be deposited in the OSBI Revolving Fund. School
5 districts may reimburse employees for the cost of the search. The
6 State Board of Education shall contact the OSBI for any national
7 criminal history record of the person within fourteen (14) working
8 days of receiving a written request from the board of education.

9 B. The Oklahoma State Bureau of Investigation shall provide the
10 national criminal history record check requested by the State Board
11 of Education within fourteen (14) working days from the receipt of
12 the request. The Bureau may contact the Federal Bureau of
13 Investigation to obtain the information requested.

14 C. The State Board of Education shall provide the information
15 received from the Oklahoma State Bureau of Investigation to the
16 board of education within fourteen (14) days from the receipt of the
17 information. The State Board of Education shall provide any follow-
18 up information received from the OSBI concerning a person for whom a
19 national criminal history record check was requested to the
20 employing board of education.

21 D. For the purpose of this section:

22 1. "Board of education" includes both public and private boards
23 of education within or outside this state;
24

1 2. "Employing agency" means a political subdivision or law
2 enforcement agency in this state;

3 3. "Law enforcement officer" means a peace or police officer
4 who is certified by the Council on Law Enforcement Education and
5 Training;

6 4. "National criminal history record check" means a national
7 criminal history record check as defined in Section 150.9 of Title
8 74 of the Oklahoma Statutes; and

9 5. "Prospective employee" means an individual who has received
10 an offer of temporary employment from a school district pending the
11 results of the national criminal history record check.

12 E. Each public board of education within this state shall
13 promulgate a statement regarding the felony record search policy for
14 that school district. The policy may permit temporary employment of
15 prospective employees for a maximum of sixty (60) days pending
16 receipt of results of national criminal history record check
17 requests. The temporary employment of the prospective employee
18 shall terminate after sixty (60) days unless the school district
19 receives the results of the national criminal history record check.
20 The sixty-day temporary employment period shall begin on the first
21 day the prospective employee reports for duty at the employing
22 school district. Prospective employees shall be notified of the
23 requirement, the fee, and the reimbursement policy when first
24 interviewed concerning employment. The school district's

1 reimbursement policy shall provide, at a minimum, that employees
2 shall be promptly reimbursed in full for the fee if employed by the
3 district at the time the national criminal history record check
4 request is made unless the person was employed pending receipt of
5 results.

6 F. 1. Any person who has been employed as a full-time teacher
7 by a school district in this state and applies for employment as a
8 full-time teacher in a school district in this state may not be
9 required to have a national criminal history record check if the
10 teacher produces a copy of a national criminal history record check
11 completed within the preceding five (5) years and ~~a letter~~ an
12 affidavit from the school district in which the teacher was employed
13 stating the teacher left in good standing ~~and~~. The affidavit shall
14 attest as to whether the teacher was the subject of any allegation
15 of inappropriate behavior with a student and whether there was a
16 pending or ongoing investigation of inappropriate behavior between
17 the teacher and a student. If an allegation of inappropriate
18 behavior was investigated by an employing school district, the
19 affidavit shall state whether the allegation was substantiated,
20 unsubstantiated, or closed with no finding of misconduct. The
21 affidavit shall include contact information for the prior employing
22 school district, which the prospective employing school district
23 shall contact to determine the validity of the submitted affidavit.
24

1 2. For any person applying for employment as a substitute
2 teacher, a national criminal history record check shall be required
3 for the school year; provided, however, a board of education may
4 choose whether to require a national criminal history record check
5 from a prospective substitute teacher who has been employed by the
6 school district in the last year. Any person applying for
7 employment as a substitute teacher in more than one school district
8 shall only be required to have one national criminal history record
9 check, and, upon the request of the substitute teacher, that record
10 check shall be sent to all other school districts in which the
11 substitute teacher is applying to teach.

12 3. Any person employed as a full-time teacher by a school
13 district in this state in the five (5) years immediately preceding
14 an application for employment as a substitute teacher may not be
15 required to have a national criminal history record check, if the
16 teacher produces a copy of a national criminal history record check
17 completed within the preceding five (5) years and ~~a letter~~ an
18 affidavit from the school district in which the teacher was last
19 employed stating the teacher left in good standing ~~and~~. The
20 affidavit shall attest as to whether the teacher was the subject of
21 any allegation of inappropriate behavior with a student and whether
22 there was a pending or ongoing investigation of inappropriate
23 behavior between the teacher and a student. If an allegation of
24 inappropriate behavior was investigated by an employing school

1 district, the affidavit shall state whether the allegation was
2 substantiated, unsubstantiated, or closed with no finding of
3 misconduct. The affidavit shall include contact information for the
4 prior employing school district, which the prospective employing
5 school district shall contact to determine the validity of the
6 submitted affidavit.

7 4. Any person employed as a substitute teacher by a school
8 district in this state for a minimum of five (5) years immediately
9 preceding an application for employment as a full-time teacher in a
10 school district in this state may not be required to have a national
11 criminal history record check if the teacher produces a copy of a
12 national criminal history record check completed within the
13 preceding five (5) years and a letter from the school district in
14 which the teacher was employed as a substitute teacher stating the
15 teacher left in good standing and whether the teacher was the
16 subject of any allegation of inappropriate behavior with a student.

17 5. Any person employed as a full-time teacher by a school
18 district in this state for ten (10) or more consecutive years
19 immediately preceding an application for employment as a substitute
20 teacher in the same school district may not be required to have a
21 national criminal history record check for as long as the person
22 remains employed for consecutive years by that school district as a
23 substitute teacher, if the teacher left full-time employment in good
24 standing. If the teacher applies for employment as a substitute

1 teacher in another school district, a national criminal history
2 record check shall be required.

3 G. 1. Except as otherwise provided by this subsection, any
4 teacher employed by an Oklahoma school district prior to May 19,
5 2020, who does not have an Oklahoma criminal history record check
6 from the Oklahoma State Bureau of Investigation as well as a
7 national criminal history record check, as defined in Section 150.9
8 of Title 74 of the Oklahoma Statutes, on file with his or her
9 employing district as required by this section shall complete the
10 criminal history record checks upon the next renewal of his or her
11 standard teaching certificate as required by Section 6-154.1 of this
12 title or State Board of Education administrative rules promulgated
13 thereto.

14 2. Except as otherwise provided by this subsection, any other
15 person employed by an Oklahoma school district prior to May 19,
16 2020, who does not have an Oklahoma criminal history record check
17 from the Oklahoma State Bureau of Investigation as well as a
18 national criminal history record check, as defined in Section 150.9
19 of Title 74 of the Oklahoma Statutes, on file with his or her
20 employing district as required by this section shall have until July
21 1, 2022, to complete the criminal history record checks.

22 3. Any teacher eligible to retire from the Teachers' Retirement
23 System of Oklahoma who does not have an Oklahoma criminal history
24 record check from the Oklahoma State Bureau of Investigation as well

1 as a national criminal history record check, as defined in Section
2 150.9 of Title 74 of the Oklahoma Statutes, on file with his or her
3 employing district as required by this section shall complete the
4 criminal history record checks by the earlier of the following
5 dates:

6 a. July 1, 2022, or

7 b. at the next renewal of his or her standard teaching
8 certificate as required by Section 6-154.1 of this
9 title or State Board of Education administrative rules
10 promulgated thereto.

11 H. Any person who willfully submits an affidavit required by
12 paragraphs 1 and 3 of subsection F of this section which the person
13 knows to be false shall, upon conviction, be guilty of a misdemeanor
14 punishable by imprisonment in the county jail for not more than one
15 (1) year, or by a fine not more than Five Hundred Dollars (\$500.00),
16 or by both such imprisonment and fine.

17 I. A board of education shall be prohibited from hiring a full-
18 time teacher who fails to provide the affidavit required by
19 paragraphs 1 and 3 of subsection F of this section.

20 J. The provisions of this section shall not apply to technology
21 center employees hired on a part-time or temporary basis for the
22 instruction of adult students only.

1 ~~¶~~ K. The provisions of this section shall not apply to law

2 enforcement officers who are employed by an employing agency at the
3 time of application for employment at a public school district.

4 ~~¶~~ L. Nothing in this section shall be construed to impose

5 liability on school districts, except in negligence, for employing
6 prospective employees within the sixty-day temporary employment
7 window pending the results of the national criminal history record
8 check.

9 SECTION 3. This act shall become effective July 1, 2026.

10 SECTION 4. It being immediately necessary for the preservation
11 of the public peace, health, or safety, an emergency is hereby
12 declared to exist, by reason whereof this act shall take effect and
13 be in full force from and after its passage and approval.

14
15 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION OVERSIGHT, dated
16 04/13/2026 - DO PASS.
17
18
19
20
21
22
23
24